

Ayodhya Prasad Alias Lala Prajapati v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 4 July 2014 · Criminal Misc. Writ Petition No. 10638 of 2014 · **FIR quash refused; arrest to follow CrPC 41/41-A; compounding left to Supply Code 2005.**

HEADNOTE

An FIR under Section 135 of the Electricity Act that discloses a cognizable offence is not quashed. Where the offence cannot attract a sentence of more than seven years, arrest if made must comply with Section 41(1)(b) read with Section 41-A CrPC. If the offence is compoundable, the accused may pursue compounding under the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ayodhya Prasad alias Lala Prajapati sought quashing of the FIR dated 18 April 2014 registered as Case Crime No. 55 of 2014 under Section 135 of the Electricity Act at Police Station Harbansh Mohal, District Kanpur. He had not been arrested. His counsel submitted that even if the charge were proved the sentence could not exceed seven years, so arrest should not be mechanical, and that the offence was compoundable. The State and counsel for the complainant were heard.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

s.135 FIR quash, arrest safeguards, compounding

HOLDING

An FIR under Section 135 of the Electricity Act that discloses a cognizable offence will not be quashed. Arrest had not been made; a mere apprehension of arrest in breach of Section 41(1)(b) read with Section 41-A CrPC does not warrant interference, those provisions being expected to be followed, with a complaint to the Magistrate available if they are violated. If arrest is to be made and the offence will not entail a sentence of more than seven years, the police must comply with Section 41(1)(b) read with Section 41-A CrPC. If the offence is compoundable, the accused may seek the remedy under the Electricity Supply Code, 2005. ¶ 2

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy An FIR under Section 135 of the Electricity Act that discloses a cognizable offence is not quashed. Where the offence cannot attract a sentence of more than seven years, arrest if made must comply with Section 41(1)(b) read with Section 41-A CrPC.. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ALLEGED SECTION 135 OFFENCE IS IN FACT COMPOUNDABLE, AND COMPOUNDING ON THE MERITS

The Court only observed that if the offence is compoundable the petitioner may seek the Supply Code 2005 remedy. ¶ 2